

HOUSE BILL 2033

By Harris

AN ACT to amend Tennessee Code Annotated, Title 40,
relative to the sentencing of criminal offenders.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 35, Part 3, is amended by
adding the following as a new section:

(a) For acts committed on or after July 1, 2026, the sentencing court shall, in
addition to any other punishment authorized by this chapter or title 39, order the
convicted person to complete community service as follows:

(1) For a person convicted of a felony offense and receiving a sentence
other than a sentence of death, imprisonment for life without the possibility of
parole, or confinement required to be served at one hundred percent (100%)
under § 40-35-501, the sentencing court shall order the convicted person to
complete eighty (80) hours of community service; and

(2) For a person convicted of a misdemeanor offense, other than a
moving or nonmoving traffic offense or any misdemeanor offense punishable by
a fine only, the sentencing court shall order the convicted person to complete
forty (40) hours of community service.

(b) The community service required under subsection (a) must be:

(1) Completed with a nonprofit organization, governmental entity, public
school, or community-based program approved by the court;

(2) Documented in writing by an authorized representative of the service
location; and

(3) Submitted to the court or the defendant's supervising authority for verification before the defendant's release from probation or parole.

(c) If the convicted person is sentenced to a period of confinement, then the community service required under subsection (a) must be a condition of any early release on parole.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.